

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MIKE TONG,

Plaintiff,

-against-

THE CITY OF NEW YORK,
DETECTIVE RICHARD DIXONDefendants.
-----X

SUMMONS

Index No.:

Plaintiff Designates
New York County
As the Place of Trial

Basis of Venue: Place of Occurrence

To the above-names Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007RICHARD DIXON
13th Precinct
230 E 21st St
New York, NY 10010Dated: New York, New York
February 19, 2024Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184By: Cody Warner
CODY WARNER, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X	:	
MIKE TONG,	:	
	:	
Plaintiff,	:	VERIFIED COMPLAINT
	:	
-against-	:	Index No.:
	:	
THE CITY OF NEW YORK,	:	
DETECTIVE RICHARD DIXON	:	
	:	
Defendants.	:	
-----X	:	

Plaintiff, MIKE TONG, by his attorney, CODY WARNER, alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the Defendants' unlawful arrest of Mike Tong ("Plaintiff") on October 12, 2022, and malicious prosecution that terminated on April 12, 2023. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 and analogous claims under New York state law. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney's fees pursuant to applicable state law.

VENUE AND JURISDICTION

2. Venue is proper in New York County Supreme Court pursuant to CPLR § 503 because the acts complained of herein occurred in New York County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. This action commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

4. Plaintiff filed a petition in New York County Supreme Court seeking leave to file a late notice of claim for this matter. The City of New York did not oppose, and Plaintiff's notice of claim was deemed timely served *nunc pro tunc* by the Honorable Machelles Sweeting on October 17, 2023.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff is a sixty-eight-year-old man who resides in New York County, New York.

7. Defendant Detective Richard Dixon ("Defendant Dixon") was at the time of the incident an officer, employee, and agent of the New York City Police Department ("NYPD"), which is an agent of Defendant the City of New York ("Defendant City").

8. Defendant Dixon is sued in his individual and official capacities. At all times mentioned herein, Defendant Dixon acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

9. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

10. On or about October 7, 2022, Defendant Dixon contacted Plaintiff to inform him that William Yep—Plaintiff's half-brother—accused Plaintiff of stealing rent checks from inside 314 2nd Avenue in New York County.

11. Plaintiff informed Defendant Dixon that his mother—Sou Chock Yep, who had passed away earlier that year—had an ownership interest in 314 2nd Avenue and that he had authority to enter and collect the rent checks from 314 2nd Avenue as the executor of her estate.

12. Plaintiff informed Defendant Dixon that he and William Yep were in the middle of a legal dispute in New York County Surrogate's Court regarding Sou Chock Yep's estate (Docket 2022-1593/B).

13. Plaintiff informed Detective Dixon that he had legal counsel representing him for the matter in Surrogate's Court, who had advised him to enter 314 2nd Avenue to collect rent checks and deposit them in a bank account connected to his mother's estate.

14. Plaintiff's legal counsel for Surrogate's Court spoke with Detective Dixon and informed him that, as the executor of his mother's estate, Plaintiff had the legal right to enter 314 2nd Avenue.

15. Despite knowing this information, Detective Dixon still arrested Plaintiff at the 13th Precinct on October 12, 2022.

16. Detective Dixon did not have probable cause to justify his arrest of Plaintiff.

17. Detective Dixon then commenced a prosecution against Plaintiff—Docket CR-026785-22NY.

18. Docket CR-026785-22NY charged Plaintiff with Grand Larceny in the Third Degree (P.L. § 155.35(1)) and Burglary in the Third Degree (P.L. § 140.20).

19. Detective Dixon maliciously prosecuted Plaintiff because he knew the prosecution was not supported by probable cause.

20. Based on all the information provided to him, Detective Dixon knew that Plaintiff did not intend to steal any property.

21. Based on all the information provided to him, Detective Dixon knew that Plaintiff was not unlawfully inside of 314 2nd Avenue.

22. Plaintiff was incarcerated for approximately twelve hours before he was released at his arraignment in New York County Criminal Court for Docket CR-026785-22NY.

23. While incarcerated, Plaintiff developed severe gastrointestinal issues. He was hospitalized at Hackensack Meridian University Hospital on October 14, 2023, where he was diagnosed with pancreatitis.

24. Plaintiff was discharged from Hackensack Meridian University Hospital on October 16, 2023, but he still has medical complications from the pancreatitis that manifested while he was unlawfully incarcerated.

25. Plaintiff was ordered to attend multiple court appearances while Docket CR-026785-22NY was pending in New York County Criminal Court.

26. Docket CR-026785-22NY was dismissed on April 12, 2023.

27. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, physical pain, embarrassment, suffering humiliation, and deprivation of his constitutional rights.

CAUSES OF ACTION

First Claim

False Arrest Under 42 U.S.C. § 1983

28. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated therein.

29. Defendant Dixon deprived Plaintiff of his rights afforded by the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully arresting and detaining Plaintiff.

30. The wrongful and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without probable cause, without a warrant, and without privilege or consent.

Second Claim

False Arrest Under New York State Law

31. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

32. Defendant Dixon caused Plaintiff to be arrested without probable cause.

33. Plaintiff was conscious of his confinement.

34. Plaintiff did not consent to his confinement.

35. Plaintiff's arrest was not otherwise privileged.

36. Defendant City, as the employer of Defendant Dixon, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

37. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Third Claim

Malicious Prosecution Under 42 U.S.C. § 1983

38. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

39. Defendant Dixon violated Plaintiff's Fourth and Fourteenth Amendment rights by maliciously prosecuting Plaintiff.

40. Defendant Dixon commenced a prosecution against Plaintiff.

41. Defendant Dixon lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

42. Defendant Dixon acted with malice.

43. In the absence of probable cause, malice may be inferred.

44. The prosecution was terminated in Plaintiff's favor.

45. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Fourth Claim

Malicious Prosecution Under New York State Law

46. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

47. Defendant Dixon maliciously prosecuted Plaintiff.

48. Detective Dixon commenced a prosecution against Plaintiff.

49. Detective Dixon lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

50. Detective Dixon acted with malice.

51. In the absence of probable cause, malice may be inferred.

52. The prosecution was terminated in Plaintiff's favor.

53. Defendant City, as employer of Detective Dixon, is responsible for the wrongdoing under the doctrine of *respondeat superior*.

54. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff in an amount to be determined by a jury;
- b. An order awarding punitive damages in an amount to be determined by a jury;
- c. Reasonable attorney's fees and the costs and disbursements of this action; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: New York, New York
February 19, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: *Cody Warner*
Cody Warner, Esq.

VERIFICATION

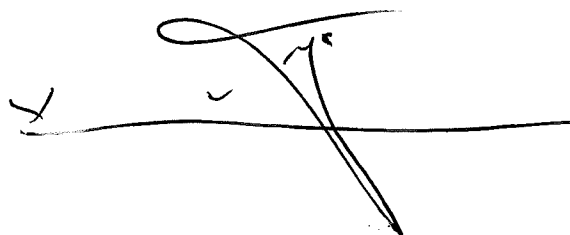
STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Mike Tong, being duly sworn, deposes and says under the penalty of perjury:

- 1) I am the Plaintiff in these proceedings.
- 2) I made this verification pursuant to CPLR § 3020(d)(3).
- 3) I have read the complaint and hereby state that it is true to the best of my knowledge, information, and belief.

Sworn to and subscribed before me

This 21st day of February, 2023.



Notary Public

SCOTT G KYI
Notary Public, State of New York
01KY6389391
Qualified in New York County
Commission Expires March 25, 2027

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SUMMONS AND VERIFIED COMPLAINT

CODY WARNER, P.C.

By: Cody Warner
Attorney for Plaintiff
11 Broadway
Suite 615
New York, NY
Tel. 212-627-3184
